

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
OFFICES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR
PRESENTENCE REPORT**

Published Opinion — Dismissed in Part; Sentence Vacated and Remanded

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 40 Decided and Filed July 28, 2026

Before Judges Slate, Alder, and March.

Judge Slate wrote the opinion of the court.

Mateo Serrano appeals from a judgment entered after his guilty plea to a fictional conspiracy count. He seeks review of a three-level manager-or-supervisor adjustment and contends that the sentencing court completely denied him a personal opportunity to allocute.

The plea agreement contains a knowing, intelligent, and enforceable waiver covering ordinary challenges to the conviction and sentence, including Guidelines review. It also expressly reserves a claim based on complete denial of the personal allocution opportunity required by Rule 32. We therefore enforce the waiver against the enhancement target and dismiss that part of the appeal without deciding the adjustment's merits.

The surviving claim is established. The judge never personally invited Serrano to speak or present mitigation before imposing sentence. On this record, there is a real possibility that personal allocution could have produced a lower term. We vacate the sentence and remand for full resentencing, leaving the conviction intact.

I. Procedural History

Serrano pleaded guilty on November 18, 2025, under a written agreement. The district court conducted a personal Rule 11 colloquy, accepted the plea, and later considered a presentence report, objections, and sentencing submissions. On February 24, 2026, the court overruled Serrano's objection to a three-level aggravating-role adjustment and imposed a 36-month prison term. Judgment followed the next day.

Serrano filed his notice of appeal on March 11, the fourteenth day after judgment. The district clerk transmitted a certified 260-page record on March 16. The appeal is therefore timely under the ordinary criminal timetable; no issue concerning extension or excuse arises in this docket.

The government promptly moved to dismiss only the enhancement target under the appeal waiver. Serrano opposed target-limited enforcement but agreed that the allocution claim was expressly preserved. On May 5, we dismissed the enhancement target and retained the allocution issue for briefing. The parties filed public and protected twin briefs under the continued seal and April 1 protocol. We heard argument on July 7.

II. Fictional Offense and Sentence

The public record describes an abstract scheme involving false reimbursement claims submitted to the fictional Meridian Community Supply Cooperative between August 4 and November 2, 2025. It identifies \$186,400 as the loss and restitution amount. Nothing in this opinion supplies operational mechanics, credentials, routing information, or a method for committing an offense.

The sentencing record identifies exactly five criminally responsible participants: Serrano, Alina Pared, Corin Bell, Darius Venn, and Nessa Holt. The disputed role question was whether Serrano managed or supervised Pared as a person. Neither side argued that management of property, assets, or activity alone would satisfy the adjustment.

Using the 2025 Guidelines Manual, the district court adopted offense level 20 and criminal-history category I, yielding an advisory range of 33 to 41 months. Without the disputed three-level adjustment, the stated comparison was offense level 17 and 24 to 30 months. The court imposed 36 months, three years of supervised release, restitution of \$186,400, a \$100 assessment, and no fine.

III. The Plea Agreement

The written agreement broadly relinquishes Serrano's right to appeal the conviction and whatever sentence is imposed, expressly including statutory sentencing review and ordinary Guidelines claims. In a separate limitation, it preserves a challenge asserting that the sentencing court entirely failed to give Serrano his own chance to speak before sentence.

We paraphrase rather than reproduce the full clause because its exact text appears in the public plea agreement. The material point is structural: the waiver is broad as to conviction and sentence but contains a narrow, express allocution reservation. The government has not breached the agreement, and Serrano does not seek to withdraw his plea.

The Rule 11 transcript shows that the district judge addressed Serrano personally about both parts. The judge explained that ordinary sentencing disagreements, including Guidelines issues, would not be appealable. She separately explained that total denial of personal allocution remained reviewable. Serrano confirmed that he understood, had discussed the provision with Celia Arden, and accepted it voluntarily.

IV. Rule 11 Review

Rule 11(b)(1)(N) requires a court to address the defendant personally and determine that he understands a plea term waiving appellate or collateral review. We assess a challenged waiver de novo and examine the totality of the circumstances, including the agreement's language, the colloquy, counsel's advice, and the defendant's answers.

The colloquy here was not a bare reference to an appeal waiver. Judge Elara Venn identified the rights surrendered, connected the waiver to conviction and sentencing review, and confirmed Serrano's understanding. She also described the allocution exception as a distinct retained target. Serrano answered personally and coherently. Nothing suggests coercion, confusion, lack of competency, or an undisclosed promise.

The record further shows that Arden reviewed the agreement with Serrano before the hearing. The prosecutor described the material terms, and Serrano agreed that the description was accurate. The court then found the plea knowing and voluntary. Those findings are supported by the public transcript. We conclude that the waiver was knowingly and intelligently accepted.

V. Governing Waiver Principles

United States v. Boutcher, 998 F.3d 603, 608–09 (4th Cir. 2021), instructs us to enforce an appeal waiver when the government has not breached, the defendant knowingly and intelligently agreed, and the appealed issue falls within the provision's unambiguous scope. United States v. Smith, 134 F.4th 248, 255–61 (4th Cir. 2025), likewise emphasizes the explanation actually given under Rule 11 and the agreement the defendant accepted.

After briefing but before our decision, the Supreme Court decided *Hunter v. United States*, 608 U.S. ___, No. 24-1063 (June 18, 2026). *Hunter* recognizes a demanding miscarriage-of-justice limit but holds that standard sentencing-law mistakes remain waivable. Serrano does not invoke that limit to avoid his bargain, and an ordinary dispute about applying an aggravating-role guideline would not satisfy it.

Our analysis instead follows the contract's express line. The Guidelines target lies within the general waiver. The complete-denial allocution target lies within a specific reservation. Giving effect to both provisions enforces, rather than evades, the parties' allocation of appellate review.

VI. The Waiver Is Valid

Serrano argues that a waiver spanning conviction, sentence, statutory review, and Guidelines questions is unusually comprehensive. Breadth alone does not make an explained waiver unknowing. The plea court identified the practical consequences and asked Serrano whether he understood them.

He also suggests that the express exception could cause uncertainty about all other sentencing claims. The opposite is true. The reservation demonstrates that the parties knew how to preserve a particular issue while surrendering the rest. It sharpens the boundary rather than obscuring it.

No government breach affects enforcement. The fictional United States honored its obligations, recommended the agreed treatment, and invoked the waiver at its first filing directed to disposition. Serrano challenges the waiver but not the guilty plea, so de novo review of the provision is appropriate. Considering the signed agreement, personal colloquy, counsel consultation, and absence of contrary evidence, we hold the waiver valid.

VII. Scope as to the Enhancement Target

Serrano's first target asks us to review the district court's application of U.S.S.G. § 3B1.1(b). Section 3742 authorizes certain sentencing appeals, including claims of incorrect Guidelines application, but that statutory avenue may be relinquished through a valid waiver. The accepted language expressly reaches such review.

The challenge is an ordinary sentencing-law dispute. It asks whether evidence established that Serrano managed or supervised at least one of five participants and whether the three-level increase was proper. It neither attacks plea validity nor alleges government breach. The allocution reservation says nothing about preserving role-adjustment review.

Hunter forecloses treating a standard Guidelines contention as an automatic miscarriage of justice. Serrano candidly relies on no such exception. Boutcher therefore requires enforcement because the target falls within the unambiguous scope. Our May 5 order correctly dismissed this portion, and we reaffirm that target-limited disposition today.

VIII. No Enhancement Merits Holding

Because the waiver bars review, we do not decide whether the government proved the adjustment. Section 3B1.1(b) and *United States v. Steffen*, 741 F.3d 411, 414–16 (4th Cir. 2013), require management or supervision of at least one criminally responsible person, and the government bears a preponderance burden subject to clear-error appellate review. Amendment 836 removed obsolete language concerning an asset-only departure, but no party treats property management as sufficient here.

Those propositions describe the dispute; they do not resolve it. We express no view about whether Serrano directed Pared, whether the district court's finding was clearly erroneous, or which advisory range should apply at a later proceeding. The five-participant premise alone does not answer the personal-management question.

If resentencing occurs, the district court may calculate the Guidelines anew on the lawful record then before it. That authority follows from full sentence vacatur, not from appellate reversal of the role finding. The parties remain free to preserve positions permitted at resentencing. Our disposition of the appellate target remains dismissal under the waiver, without merits adjudication.

IX. The Express Allocution Reservation

United States v. Ashford, 103 F.4th 1052, 1056–57 (4th Cir. 2024), holds that a generic waiver of sentencing appeals can reach an allocution claim. It does not control the scope of an agreement that expressly excludes complete denial from the waiver. Contract language particular to Serrano therefore distinguishes this case.

The reservation is narrow. It does not preserve complaints about the duration of a statement, reasonable subject limits, or the weight a judge assigned to remarks. It preserves a claim that the court entirely withheld the defendant's personal opportunity. That is the claim Serrano presents.

We reject any suggestion that enforcing the reservation creates a general equitable exception. The target survives because the government and Serrano wrote it into their bargain and the Rule 11 court confirmed it. The same reasoning that compels enforcement against the enhancement issue compels review here. A court cannot honor only the provisions favoring one party while disregarding an express limitation on waiver scope.

X. Rule 32 and Allocution

Rule 32(i)(4)(A)(ii) requires the sentencing court, before imposing sentence, to address the defendant personally and permit him to speak or present information in mitigation. The responsibility belongs to the judge; an invitation to defense counsel is not enough.

United States v. Jennings, 130 F.4th 157, 161–64 (4th Cir. 2025), explains that a defendant has an absolute opportunity to allocute, although a court may impose reasonable limits on the duration and content of a statement actually offered. Complete denial differs fundamentally from a dispute about such limits. *United States v. Muhammad*, 478 F.3d 247, 249–51 (4th Cir. 2007), applies plain-error review when the court never affords the personal opportunity and no objection is made.

Allocution serves a function distinct from briefing or attorney advocacy. It allows the person being sentenced to accept responsibility, offer explanation, describe mitigation, and ask directly for leniency. A judge may ultimately impose the same term, but the criminal rule requires that personal participation before the choice is finalized.

XI. The Transcript Shows Complete Denial

At the February 24 hearing, the district court confirmed that the parties had reviewed presentence materials, resolved the role objection, and received sentencing arguments. Judge Venn also confirmed that Serrano could hear and consult with counsel. Arden spoke for Serrano. Ives spoke for the United States. The judge then explained the statutory considerations and announced sentence.

The transcript contains no direct question asking Serrano whether he wished to speak or present mitigating information. It records no allocution or personal mitigation statement by Serrano before sentence. The hearing closed after the court provided notice of appellate rights. Counsel did not object to the omitted invitation.

The government properly concedes complete denial. This is not a case in which the defendant was invited and declined, spoke briefly, or encountered a reasonable limitation. Nor can Arden's careful presentation be imputed to Serrano as personal allocution. Attorney advocacy and personal speech occupy distinct roles at sentencing. The certified sequence establishes a violation of Rule 32.

XII. Error and Plainness

Because Serrano did not call the omission to the district court's attention, we review for plain error. He must show error, plainness, an effect on substantial rights, and a basis for discretionary correction.

The first element follows from the failure to invite him personally to speak or present mitigation. The second follows from the rule's direct language and longstanding circuit decisions. No unsettled factual or legal question obscured the duty on February 24. The judge could have complied with a simple personal invitation before sentence.

The appeal-waiver reservation does not eliminate these ordinary preservation requirements. It determines that the target may be reviewed; it does not convert an unpreserved error into a preserved one. Conversely, the absence of an objection does not return the claim to the waiver. The defendant still bears the established appellate burden. Keeping contract scope and error review separate gives each doctrine its proper effect.

XIII. Substantial Rights

For complete denial of allocution, Muhammad asks whether there is a possibility that the defendant could receive a lower sentence. The defendant need not prove a reduction with certainty. Demanding the exact words he would have spoken would be especially inappropriate when the error prevented the statement from occurring.

Several record features establish the required possibility. The district court imposed 36 months, not the lowest term in the range it adopted. Protected submissions, represented publicly by category-level descriptions, documented remorse, treatment, caregiving, sustained work, and a reentry plan. Counsel presented those themes, but Serrano could have explained their personal meaning and requested mercy in his own voice.

The judge's review of written mitigation does not eliminate that distinct opportunity. Allocution may affect how a court weighs information it already knows. Given available discretion below 36 months and individualized mitigating subjects, a lower sentence was genuinely possible. Serrano has shown an effect on substantial rights.

XIV. Discretionary Correction

We also exercise our discretion to correct the error. Sentencing is the moment at which the court imposes the most personal consequence of the criminal judgment. A complete failure to hear the defendant, where a lower term is possible, impairs the fairness and public reputation of that proceeding.

This conclusion does not establish automatic reversal for every allocution complaint. Jennings permits reasonable controls after an opportunity exists, and ordinary preservation principles still apply. A limited statement presents a materially different question. Our holding concerns a total omission supported by a concrete record of sentencing discretion and mitigation.

Correction likewise does not undermine the appeal waiver. The parties expressly preserved this target. Enforcing that term while enforcing the broad waiver elsewhere promotes confidence in negotiated pleas and respects the Rule 11 explanation given here. We therefore hold that all four plain-error requirements are satisfied.

XV. Full Resentencing Is Required

The sentence must be vacated and the case returned for a new sentencing hearing. On remand, the district court shall address Serrano personally and permit him to speak before imposing sentence. The hearing is not limited to inserting allocution into the old proceeding.

A full resentencing allows the court to determine the advisory range on the lawful record then presented, receive current submissions, resolve preserved objections, consider the statutory factors, and impose an independent sentence. We prescribe no term and express no opinion about how the role adjustment should be resolved.

The conviction remains intact because the error occurred during sentencing and does not affect the knowing guilty plea. Our dismissal of the enhancement appeal also remains in force. The possibility that the Guidelines may be recalculated on remand does not convert dismissal into appellate review of that target; it follows from vacating the sentencing package for the separate allocution error.

XVI. Public and Protected Record

The district record includes automatically confidential presentence papers and public docket surrogates. On appeal, four equal-page public/protected pairs were supported by the public April 1 motion and certificate. Three are brief pairs; the fourth uses a public category index for a separate sealed PSR volume rather than portraying a public report with redactions.

Our holding is fully explained from public material. Protected context supports the prejudice assessment, but the opinion discloses only broad mitigation categories already identified publicly. It contains no private narrative, real identifier, or actionable offense description.

Local Rule 25(c), the April 1 motion and certificate, and the court's continuing confidentiality direction govern the protected appellate materials. Public counterparts remain available. This opinion neither reveals protected detail nor enlarges access; presentence materials stay confidential under the rules and orders already applicable to them.

The panel's reasoning and disposition remain fully available without resort to any protected personal narrative.

XVII. Disposition

We hold that Serrano knowingly and intelligently accepted an appeal waiver and that the fictional United States did not breach the plea agreement. The ordinary § 3B1.1(b) challenge falls within the waiver. That target is dismissed, and we reach no view concerning management of a participant, the district finding, or the proper advisory calculation.

We separately hold that the agreement expressly preserves a claim based on complete denial of personal allocution. The sentencing court committed plain error by never affording Serrano a personal opportunity to speak or present mitigation, and the individualized mitigation plus available discretion establishes a possibility of a lower sentence. Correction is warranted.

Accordingly, the appeal is dismissed in part. The sentence is vacated, and the case is remanded for full resentencing at which Serrano must receive the personal opportunity required by Rule 32. The conviction remains intact. The mandate will issue under the ordinary appellate timetable unless a timely filing or court order changes that schedule.

DISMISSED IN PART; SENTENCE VACATED AND REMANDED FOR FULL RESENTENCING.